

Line 3

Case Name: *Fanbo Zhang v. Wen Luo, et al.*

Case No.: 25CV483126

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Wen Luo (“Defendant”) moves under Code of Civil Procedure Section 425.16 moves to strike the Complaint of Plaintiff Fanbo Zhang (“Plaintiff”) on the grounds that:

1. Plaintiff’s Complaint arises from Defendant’s conduct in furtherance of her right of free speech under the United States and California Constitution, which conduct is protected under anti-SLAPP statute codified in Code of Civil Procedure § 425.16; and
2. Plaintiff cannot meet his burden of establishing, through competent and admissible evidence, a probability that he will prevail on each cause of action within his Complaint and all subsequent causes of action derived therefrom as required under Code of Civil Procedure § 425.16(b)(1).

Notice of Motion (the “Motion”) at 1:24-2:7 (filed: June 16, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On or around June 30, 2023, Plaintiff and Defendant entered into a settlement agreement (“the Agreement”) to settle and resolve any disputes arising from Plaintiff and Defendant’s relationship. (Complaint, ¶ 6.) Plaintiff agreed to provide Defendant a 2018 White Audi A4, a David Yurman ring, and \$3,000 cash. (*Id.* at ¶ 7.) Defendant “fully and forever released and discharged Plaintiff from any and all claims, demands, actions, causes of action, liabilities, damages, costs, expenses, or judgments of any kind or character in law, equity or otherwise, known and unknown, suspected and unsuspected, disclosed and undisclosed, directly or indirectly relating to” Plaintiff’s relationship with Defendant at any time prior to and including the date of execution. (*Id.* at ¶ 8.)

The parties “expressly agreed that the release extends to all claims occurring before the execution of the Agreement and that both parties waived all rights granted under section 1542 of the California Civil Code.” (*Id.* at ¶ 9.) The Agreement also included a confidentiality clause binding both parties from disclosing any information relating to the

relationship between Plaintiff and Defendant or relating to the Agreement. (*Id.* at ¶ 10.) The Complaint alleges that Defendant “materially violated the Agreement by (1) filing a Domestic Violence Restraining Order (“DVRO”) request, re-asserting claims arising before the Agreement and from the parties’ relationship, and (2) publicly disclosing personal and defamatory information about Plaintiff and his family online, as well as disclosing the parties’ relationship to Plaintiff’s mother, all in direct violation of the Agreement’s confidentiality provisions.” (*Id.* at ¶ 12.)

Plaintiff’s Complaint asserts causes of action for (1) breach of contract and (2) money had and received. Currently before the Court is the anti-SLAPP Motion, untimely filed by Defendant. Plaintiff has opposed the anti-SLAPP motion and Defendant has filed a reply and evidentiary objection to Plaintiff’s declaration in opposition.

For the reasons the Court will now explain below:

- Defendant’s evidentiary objection number ten is **SUSTAINED**;
- Defendant’s evidentiary objections numbers one through nine and 11 through twenty are **OVERRULED**;
- Defendant’s anti-SLAPP motion is **DENIED**; and
- Defendant’s request for fees is also **DENIED**.

Analysis of the Anti-SLAPP Motion

I. Procedural Issues

The parties agree that Defendant’s anti-SLAPP motion was filed 50 days after expiration of the statutory period to file. Defendant requests that the Court uses its discretion to nevertheless review the anti-SLAPP motion. Defendant states that the “incompetence” and “legal malpractice” of prior counsel resulted in a delay and includes a declaration to that effect. (Motion, p. 2.) Plaintiff opposes Defendant’s request and argues that Defendant did not act with reasonable diligence and that the delay was inadequately explained and substantial. However, Plaintiff does not present facts to support a finding that review of Defendant’s anti-SLAPP motion will “affect the substantial rights” of Plaintiff. Plaintiff argues only that objecting to the motion will result in prejudice due to the expense of opposing it and discovery delay. No trial date has been set in this matter, so prejudice resulting from delay to discovery is minimal. As such, the Court will review Defendant’s anti-SLAPP motion. (See Code Civ. Proc., § 425.16, subd. (f) [“The special motion may be filed within 60 days of the service of the complaint or, in the Court’s discretion, at any later time upon terms it deems proper.”].)

In addition, Defendant’s overly long Motion is in violation of California Rules of Court, rule 3.1113(d). (Cal. Rules of Court, rule 3.1113(d) [memorandum should be 15 pages or less except for summary judgment motions].) Defendant did not request leave of

Court for the overlong Motion.

Moreover, Defendant's reply presents several new arguments and facts. The Court has discretion to consider such additional issues and evidence so long as the party opposing the motion has notice and an opportunity to respond, which Defendant did *not* afford Plaintiff here. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The Court will only consider Defendant's reply to the extent it addresses points raised in opposition and originally advanced in the anti-SLAPP motion.

The Court admonishes Defendant to ensure compliance with the Code of Civil Procedure, Rules of Court, and long-established rules of motion practice.

II. Evidentiary Objections

On reply, Defendant advances 20 separate evidentiary objections ("Evidentiary Objections") to two declarations submitted by Plaintiff in support of Plaintiff's opposition to Defendant's anti-SLAPP motion. In addition to raising boilerplate objections for "lack of personal knowledge, a missing foundation, a failure to authenticate a writing, or testimony that is speculation or legal argument," Defendant argues that "Plaintiff's contract claim depends on proving that [Defendant] made the communications at issue. Neither declarant is competent to say so." (Evidentiary Objections, p. 2.) In response, Plaintiff filed a request for leave to file an amended declaration curing one declaration of its omission of a date and place of execution.

The evidence in establishing the second prong of the anti-SLAPP analysis must be admissible. (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940.) "In sum, at the second stage of an anti-SLAPP hearing, the Court may consider affidavits, declarations, and their equivalents if it is reasonably possible the proffered evidence set out in those statements will be admissible at trial. Conversely, if the evidence relied upon *cannot* be admitted at trial, because it is categorically barred or undisputed factual circumstances show inadmissibility, the Court may not consider it in the face of an objection. If an evidentiary objection is made, the plaintiff may attempt to cure the asserted defect or demonstrate the defect is curable." (*Id.* at p. 949.)

Here, among Defendant's many evidentiary objections is an objection to the declaration of Plaintiff's mother because the declaration does not include a date or place of execution. The Court **SUSTAINS** the threshold evidentiary objection to the declaration of Yajuan Sun (number 10 in Defendant's evidentiary objection motion).¹

As for Defendant's other evidentiary objections, Defendant has not demonstrated that the declarations are categorically barred or that undisputed factual circumstances show inadmissibility. Defendant largely presents boilerplate objects based on relevance,

¹ Regarding Plaintiff's related Request to file an amended Declaration (in support of her Opposition) with a date and place of execution, the Court DENIES that request by Plaintiff as MOOT because that Court DENIES Defendant's Anti-SLAPP Motion here.

hearsay, lack of foundation, or the like. It is reasonably possible that the proffered evidence in the declarations will be admissible at trial. The Court **OVERRULES** evidentiary objections numbered one through nine and 11 through 20. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532-533 [“[I]t has become common practice for litigants to flood the trial Courts with inconsequential written evidentiary objections, without focusing on those that are critical...all too often litigants file blunderbuss objections to virtually every item of evidence submitted. [Citations.] [L]itigants should focus on the objections that really count. Otherwise, they may face informal reprimands or formal sanctions for engaging in abusive practices.”].)

III. Legal Standard on Anti-SLAPP Motion

Code of Civil Procedure section 425.16 provides a summary procedure by which defendants may dispose of “strategic lawsuits against public participation” or “SLAPP” lawsuits, i.e. lawsuits brought “primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc., § 425.16, subd. (a).) The moving party bears the initial burden to make a threshold showing that the challenged cause of action arises from acts that were taken in furtherance of the defendant’s right of petition or free speech under the U.S. Constitution or the California Constitution in connection with a public issue. (*Id.* at subd. (b); see also *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal. 4th 53, 67.) If such a showing is made, the anti-SLAPP motion will be granted only where the opposing party fails to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1).)

“Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.] The Court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. [Citation.] ‘[C]laims with the requisite minimal merit may proceed.’ [Citation.]” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385, footnote omitted (*Baral*)).

Explained differently, “[a]t the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the Court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The Court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a

favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.” (*Baral*, *supra*, 1 Cal.5th at p. 396.)

IV. Analysis

A. First Step of the Analysis of the Anti-SLAPP Motion

At the first step, the moving party must show that the challenged claim arises from an “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).) “Filing a lawsuit is an act in furtherance of the constitutional right of petition, regardless of whether it has merit. [Citations.] [Citation.]” (*Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 120.)

“[A] claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 (*Park*).) “A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.’ [Citations.] ‘[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’ [Citations.] Instead, the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.]” (*Id.* at pp. 1062-1063.) At the first step of the analysis, “the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.]” (*Id.* at p. 1063.)

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the Court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.” (*Baral*, *supra*, 1 Cal.5th at p. 396.)

Here, the Complaint alleges that Defendant “materially violated the Agreement by (1) filing a Domestic Violence Restraining Order (“DVRO”) request, re-asserting claims arising before the Agreement and from the parties’ relationship, and (2) publicly disclosing personal and defamatory information about Plaintiff and his family online, as well as disclosing the parties’ relationship to Plaintiff’s mother, all in direct violation of the Agreement’s confidentiality provisions.” (Complaint, ¶ 12.) Defendant argues that her conduct was protected by her right to petition and if not by her right to petition, her right to free speech in connection with a public issue.

“The constitutional right of petition encompasses ‘the basic act of filing litigation.’ [Citation.].” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 90.) “[S]tatements, writings and pleadings in connection with civil litigation are covered by the anti-SLAPP statute, and that statute does not require any showing that the litigated matter concerns a matter of public interest. [Citations.]” (*Rohde v. Wolf* (2007) 154 Cal.App.4th 28, 35.) Plaintiff’s complaint asserts causes of action arising from Defendant having filed a DVRO request. The DVRO request was “petitioning activity” and thus protected activity, and no further showing that the litigated matter concerns a matter of public interest is required.

Defendant also argues that her public disclosures online and to Plaintiff’s mother were protected because they were made in connection with litigation, and if not in made connection with litigation, they amount to free speech in support of a public issue.

The Complaint alleges that Defendant “publicly disclos[ed] personal and defamatory information about Plaintiff and his family online, as well as disclosing the parties’ relationship to Plaintiff’s mother[.]” (Complaint, ¶ 12.) The Complaint further alleges that Defendant “engaged in multiple instances of harassment against Plaintiff’s mother, Ms. Sun,” and “made repeated phone calls and sent text messages to Ms. Sun from U.S. and international numbers, accusing Plaintiff of criminal acts and questioning her regarding Plaintiff’s prior relationship with Defendant Wen Luo.” (Complaint, ¶¶ 16, 17.)

“It is insufficient to assert that the acts alleged were in connection with an official proceeding. Instead, there must be a connection with an issue under review in that proceeding. A statement is in connection with an issue under consideration by a Court in a judicial proceeding within the meaning of clause (2) of ... section 425.16, subdivision (e) if it *relates to a substantive issue* in the proceeding and is directed to a person having some **interest** in the proceeding.” (*Michael K. v. Cho* (2025) 113 Cal.App.5th 1, 10-11, internal citations and quotation marks omitted, emphasis in original.) To the extent Defendant argues that the alleged online posts and communications with Plaintiff’s mother was protected speech in connection with her DVRO request, Defendant did not meet the burden to show that the alleged speech related to a substantive issue in her proceeding against Plaintiff or that Plaintiff’s mother had an interest in the DVRO request proceeding.

As to Defendant’s conduct being protected speech in support of the public issue of domestic violence, Code of Civil Procedure section 425.16 defines protected activity to include “any written or oral statement or writing made in a place open to the public or a

public forum in connection with an issue of public interest, or any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).) “First, we ask what ‘public issue or ... issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 149-150.)

The Complaint alleges that Defendant “made repeated phone calls and sent text messages to Ms. Sun from U.S. and international numbers, accusing Plaintiff of criminal acts and questioning her regarding Plaintiff’s prior relationship with Defendant Wen Luo,” and made “statements on social media platforms identifying Plaintiff by name and alleging he ‘forced someone to have an abortion.’” (Complaint, ¶¶ 16-18.) Domestic violence is an issue within the public interest. However, Defendant does not establish a functional relationship between the speech alleged and public conversation about domestic violence. Defendant does reference “the broader protection of the other [sic] whom Defendant believed should be protected against similar actions by Plaintiff.” (Motion, p. 21.)

However, Defendant does not explain how the conduct underlying Plaintiff’s complaint was in support of protecting others from domestic violence, or how Defendant’s alleged online posts or communications with Plaintiff’s mother was “free speech in support of a public issue” beyond conclusory statements that Defendant’s conduct was in the public interest because it concerned domestic violence, and because Plaintiff filed a competing domestic violence restraining order. Defendant does not present evidence that Plaintiff was a public figure or that a public conversation regarding domestic violence was ongoing and that Plaintiff’s speech was contributing to that conversation. (See *Sipple v. Foundation for Nat. Progress* (1999) 71 Cal.App.4th 226, 239-240 [speech concerning politician who capitalized on domestic violence issues “while allegedly committing violence against his former wives” was speech in support of a public issue].) Defendant’s filing of a DVRO request was protected activity, but Defendant has failed to meet her burden to show that the other conduct alleged in Plaintiff’s Complaint was also protected activity. Defendant seeks relief based on allegations of both protected and unprotected activity. So the second step is reached. (See *Baral, supra*, 1 Cal.5th at p. 396.)

B. Second Step of the Analysis

“If the Court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim *based on protected activity* is legally sufficient and factually substantiated.” (*Baral, supra*, 1 Cal.5th at p. 396, emphasis added.) As explained above, the challenged claim based on protected activity in Plaintiff’s complaint is the filing of a DVRO request.

In order to meet its burden to defeat a defendant’s special motion to strike, a plaintiff “must demonstrate that the [challenged claims are] both legally sufficient and

supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Soukop v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.) The Court may not weigh credibility or comparative strength of the evidence; the Court must consider the defendant’s evidence only to determine if it defeats the plaintiff’s showing as a matter of law. (See *id.* at p. 291.) “In making this assessment it is the Court’s responsibility ... to accept as true the evidence favoring the plaintiff The plaintiff need only establish that his or her claim has ‘minimal merit’ to avoid being stricken as a SLAPP.” (*Ibid.*, internal quotations and citations omitted.)

Defendant argues that Plaintiff fails to show minimal merit because “the breach of contract allegation is really disguised as a defamation cause of action, although not explicitly stated,” as is the “entire alleged common count.” (Motion, pp. 15, 16.) However, Plaintiff states that Plaintiff and Defendant signed a settlement agreement in which Defendant agreed to release all her claims against Plaintiff. (Complaint, ¶ 6.) Plaintiff further states that Defendant violated the settlement agreement by filing a DVRO petition. (Complaint, ¶ 12.) “[G]enerally speaking a party can ‘validly contract[] not to speak or petition’ and thereby ‘waive[] the right to the anti-SLAPP statute’s protection in the event he or she later breaches that contract.’” (*Olson v. Doe* (2022) 12 Cal.5th 669, 686, quoting *Navellier v. Sletten*, *supra*, at p. 94.) Accordingly, the Court rejects this argument.

Defendant also argues that her inclusion of the settlement agreement as an exhibit was explicitly allowed by the terms of the settlement agreement. However, Plaintiff’s Complaint alleges that Defendant’s act of filing of a DVRO request itself violated the parties’ settlement agreement, not necessarily the act of including the settlement agreement as an exhibit to the DVRO request. Defendant’s argument thus does not reach the crux of Plaintiff’s allegation and is inapposite.

Defendant further argues that the conduct alleged in Plaintiff’s Complaint was statements made in furtherance of her right to petition and thus protected by litigation privilege. However, “the litigation privilege does not necessarily bar liability for breach of contract claims. Application of the privilege requires consideration of whether doing so would further the policies underlying the privilege.” (*Vivian v. Labrucherie* (2013) 214 Cal.App.4th 267, 276.) “[T]he purpose of the litigation privilege is to ensure free access to the Courts, promote complete and truthful testimony, encourage zealous advocacy, give finality to judgments, and avoid unending litigation. [Citation.]” (*Wentland v. Wass* (2005) 126 Cal.App.4th 1484, 1492 (*Wentland*)). As explained above, Plaintiff alleges Defendant validly contracted to waive her claims against Plaintiff and violated the contract by filing a DVRO petition. Here, like in *Wentland*, “this cause of action is not based on allegedly wrongful conduct during litigation[.]...Rather, it is based on breach of a separate promise independent of the litigation...This breach was not simply a communication, but also wrongful conduct or performance under the contract.” (*Id.* at p. 1494.) Application of litigation privilege here, as in *Wentland*, would “frustrate the purpose” of parties’ agreement. (*Ibid.*) Thus, litigation privilege would not bar Plaintiff’s breach of contract claim.

Defendant also argues that common interest privilege protects Defendant from

liability and thus defeats Plaintiff's claims. "[A] communication, without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information" is privileged. (Code Civ. Proc., § 47, subd. (c).) Defendant does not explain how the conduct alleged to be protected activity (the filing of the DVRO petition) fits into any of the above categories. Defendant argues that Defendant "was an interested party as a domestic abuse survivor by Plaintiff on numerous occasions ... communicated only to those who stood in such a relation to Defendant to show that Defendant communicated only for the purpose of protecting herself and other students ... and ... only communicated to those who sought the information." (Motion, p. 17.) Defendant has not shown how common interest privilege would apply to Defendant's act of filing a DVRO petition, which as explained above, is the only conduct alleged in Plaintiff's Complaint that can be considered protected activity and other conduct alleged must be disregarded at the second step.

Plaintiff has met the burden to show "minimal merit" of the breach of contract claim by alleging that Defendant pursued a legal claim against Plaintiff after signing a settlement agreement.²

"To prevail on a common count for money had and received, the plaintiff must prove that the defendant is indebted to the plaintiff for money the defendant received for the use and benefit of the plaintiff. In an action on an express contract, a claim for money had and received is permitted where there has been a total failure of consideration. Failure of consideration is the failure to execute a promise, the performance of which has been exchanged for performance by the other party." (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 230, internal quotation marks and citations omitted.) Here, Plaintiff's Complaint alleges that Plaintiff transferred \$3,000 and a ring to Defendant in accordance with the parties' settlement agreement, Defendant violated the settlement agreement by filing a DVRO request, and Defendant retained the \$3,000 and ring. (Complaint, ¶¶ 11, 28-29.) Plaintiff thus argues that Defendant is indebted to Plaintiff for the \$3,000 and the ring. Without resolving evidentiary conflicts and accepting Plaintiff's facts as true (see *Baral, supra*, at pp. 384-385), Plaintiff has met the burden to show the claim for money had and received is legally sufficient and factually substantiated.

Accordingly, as Plaintiff has met the burden at the second step to demonstrate that the challenged claims have "minimal merit," Defendant's anti-SLAPP motion is **DENIED.**

² Defendant also argues that parties cannot validly contract to waive the right to file a DVRO request. However, this argument was made for the first time on reply and as explained above, cannot be considered by this Court. (See *Jay v. Mahaffey, supra*, 218 Cal.App.4th 1522, 1537-1538.)

C. Request for Attorneys' Fees

Code of Civil Procedure section 425.16, subdivision (c) provides that “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs. If the Court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the Court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” (Code Civ. Proc., § 425.16, subd. (c).) Here, because the Motion is denied, Defendant’s request for fees is also **DENIED**.

Conclusion & Order

After carefully considering all the papers and the record and the arguments of counsel, and in the exercise of its broad discretion, the Court **DENIES** Defendant’s anti-SLAPP motion and **DENIES** Defendant’s accompanying requests for fees.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)